

In G 4/19 the Enlarged Board of Appeal decided that a European patent application can be refused **under Art. 97(2) and 125 EPC** if it claims the same subject-matter as a European patent which has been granted to the same applicant and does not form part of the state of the art pursuant to Art. 54(2) and (3) EPC. The Enlarged Board also held that the application can be refused on that legal basis, irrespective of whether it: a) was filed on the same date as; or b) is an earlier application or a divisional application (Art. 76(1) EPC) in respect of; or c) claims the same priority (Art. 88 EPC) as the European patent application leading to the European patent already granted (for details, see below chapter II.F.5.2).

The technical boards have several times considered the notion of the "same subject-matter". According to established case law, a mere (partial) overlap does not prejudice the grant of a patent (see T 587/98, OJ 2000, 497; T 877/06; T 1491/06; T 1391/07; T 2402/10; T 2461/10; T 1780/12; T 621/15, T 1252/16; different view in T 307/03). See in this chapter II.F.5.3. On the relevance of the scope of protection for the issue of double patenting, see e.g. T 1780/12 and T 2563/11.

5.2. Legal basis for the prohibition of double patenting

In G 1/05 (OJ 2008, 271) and G 1/06 (OJ 2008, 307) the Enlarged Board of Appeal dealt with the issue of compliance with Art. 76(1) EPC. In this context the Enlarged Board stated that it accepted that the principle of prohibition of double patenting existed on the basis that an applicant had **no legitimate interest** in proceedings leading to the grant of a second patent for the same subject-matter if he already possesses one granted patent therefor. Therefore, the Enlarged Board found nothing objectionable in the established practice of the EPO that amendments to a divisional application were objected to and refused when the amended divisional application claimed the same subject-matter as a pending parent application or a granted parent patent.

Some technical boards have sought to identify the **legal basis** for this prohibition in the EPC and have suggested Art. 125 EPC (see T 2461/10 highlighting that the "legitimate interest" was one of the principles of procedural law generally recognised in the contracting states; see also T 2563/11; but see also T 307/03, OJ 2009, 422 and T 1423/07), or Art. 60 EPC (T 307/03; but see also T 1423/07 and T 2461/10). As noted in T 2461/10, the EPC only contains a provision relevant to the prohibition on double patenting in the context of European and national applications and patents (see Art. 139(3) EPC). Some of these decisions are summarised in this chapter II.F.5.3. In T 318/14 (OJ 2020, A104) questions concerning the legal basis for the prohibition of double patenting were referred to the Enlarged Board of Appeal.

In G 4/19 (OJ 2022, A24) the Enlarged Board of Appeal decided that a European patent application can be refused under Art. 97(2) and 125 EPC if it claims the same subject-matter as a European patent which has been granted to the same applicant and does not form part of the state of the art pursuant to Art. 54(2) and (3) EPC. The Enlarged Board also held that the application can be refused on that legal basis, irrespective of whether it: a) was filed on the same date as; b) is an earlier application or a divisional application

(Art. 76(1) EPC) in respect of; or c) claims the same priority (Art. 88 EPC) as the European patent application leading to the European patent already granted.

Giving its interpretation of the referred questions, the Enlarged Board explained that the essence of Question 1 was as follows: is there any legal basis under the EPC for refusing an application on the ground of double patenting? In this context the Enlarged Board endorsed the narrow reading of the term "double patenting" given by the referring board (T 318/14, points 17 to 23 of the Reasons, summarised above in chapter II.F.5.1). The essence of Question 2.1 was as follows: if there is a legal basis in the EPC for the prohibition on double patenting, are all three possible constellations in which double patenting may arise (i.e. constellations in which the granted patent and the application both have the same effective date, see above in chapter II.F.5.1) to be treated in the same manner? The Enlarged Board first examined Art. 125 EPC as a possible legal basis for prohibiting double patenting. Drawing on the rules of treaty interpretation pursuant to Art. 31(1) and (2) VCLT, it analysed the term "procedural provision" in Art. 125 EPC in the context of the provisions of Chapter I of Part VII of the EPC. The Enlarged Board observed that this chapter also contained Art. 123(2) and (3) EPC. It concluded that a provision falling under Art. 125 EPC may cover issues which touch upon substantive matters. The Enlarged Board then addressed the question of whether the prohibition on double patenting was a generally recognised principle of procedural law in the practice of the contracting states. It held that there were no data available to it which would allow it to safely establish the practice in all or at least the majority of the contracting states. In a next step, the Enlarged Board considered the implications of the obiter dictum in G 1/05 and G 1/06 (OJ 2008, 271 and 307). Given that the Enlarged Board in G 1/05 and G 1/06 did not state that it regarded a legitimate interest in the proceedings to be a generally recognised principle of procedural law, and the specific context of the statement on double patenting in these decisions, the Enlarged Board (in G 4/19) held that it would be inappropriate to base the double patenting prohibition on the obiter dictum in these earlier decisions.

The Enlarged Board found that it was necessary to have recourse to the preparatory documents of the EPC – as supplementary means of interpretation within the meaning of Art. 32 VCLT – in order to determine the meaning of Art. 125 EPC with regard to double patenting. The Enlarged Board derived from the preparatory documents that the majority agreement recorded in the minutes of the Diplomatic Conference in connection with Art. 125 EPC could be taken as the expression of the legislator's final and unchanged intention on the question of double patenting. In view of the wording of Art. 125 EPC, and the fact that the agreement was explicitly linked to this provision in the minutes, the straightforward interpretation of the recorded agreement was that the (potential) contracting states agreed that the prohibition on double patenting was a generally recognised principle of procedural law in the contracting states and as such applicable under Art. 125 EPC. In view of these findings, the Enlarged Board considered it unnecessary to examine the other provisions proposed as legal basis for the prohibition on double patenting. Regarding Questions 2.1 and 2.2 the Enlarged Board derived from the preparatory documents that all three possible constellations in which double patenting may arise have to be treated in the same manner.

5.3. Different subject-matter and scope of protection; overlapping subject-matter

In G 4/19 (OJ 2022, A24) the Enlarged Board of Appeal noted that the definitions of "the same subject-matter" or "the same applicant" in the context of double patenting were not the subject of the referral before it.

In T 118/91 and T 80/98, care was taken to avoid any risk of double patenting by ensuring that the subject-matter of the divisional application differed from that of the parent application. In T 118/91, in particular, the board stated that it could find nothing to support the contention that features forming part of the subject-matter of the divisional application could not be the subject of a dependent claim in the parent application. The board agreed with the Guidelines that, as a general rule, one application may claim its own subject-matter in combination with that of the other application. This approach does not lead to "double patenting" in its normal sense. In this particular case, the board was satisfied that any danger of "double patenting" had been eliminated by extensive restriction of the claims in the divisional application.

In T 587/98 (OJ 2000, 497) the examining division, relying on the Guidelines prohibiting "conflicting" claims, had refused a European patent application, filed as a divisional application, on the grounds that its subject-matter overlapped with that of the parent application and that in the overlapping region the same subject-matter was claimed; as legal basis for the refusal it invoked Art. 125 EPC. The board held that Art. 125 EPC was not applicable to the case at issue since this article required "the absence of procedural provisions in the Convention" but the provisions governing divisional applications were self-contained and complete. In addition a prohibition of "conflicting" claims in the wide sense applied by the examining division would be a matter of substantive law rather than a matter of procedure. The board also found that there was no express or implicit provision in the EPC prohibiting the presence in a divisional application of an independent claim related to an independent claim in the parent application (or patent, if it had already been granted) in such a way that the "parent" claim included all the features of the "divisional" claim combined with an additional feature.

In T 307/03 (OJ 2009, 422) the board held that the principle of the prohibition of double patenting, namely that the inventor (or his successor in title) has a right to the grant of one and only one patent from the EPO for a particular invention as defined in a particular claim, can be deduced from Art. 60 EPC 1973. Once a patent had been granted, this right to a patent had been exhausted (for a different view, see T 1423/07). Furthermore, a double patenting objection can also be raised where the subject-matter of the granted claim is encompassed by the subject-matter of the claim later put forward, that is where the applicant is seeking to re-patent the subject-matter of the already granted patent claim, and in addition to obtain patent protection for the other subject-matter not claimed in the already granted patent. In particular, where the subject-matter which would be double patented is the preferred way of carrying out the invention both of the granted patent and of the pending application under consideration, the extent of double patenting cannot be ignored as de minimis. See however T 1391/07 and T 2402/10 (both summarised below). In T 1252/16 the board noted that, contrary to the view adopted in T 307/03, according to established case law, any prohibition of double patenting only applied to the "same

subject-matter" and did not extend to claims that conferred a scope of protection overlapping each other only partially (citing T 2461/10).

In T 1391/07 the board noted that the practice of prohibition of "double patenting" was confined to patents and applications relating to the same invention as defined by the subject-matter of the corresponding claims and therefore confined to claims conferring notionally the same **scope of protection**. It saw no basis for extending this practice to cover claims not defining the same subject-matter but conferring – as in the case before it – a scope of protection overlapping with each other only partially in the sense that some, but not all of the embodiments notionally encompassed by one of the claims would also be encompassed by the other one of the claims. In particular, the lack of legitimate interest of an applicant in obtaining two patents for the same subject-matter – as invoked by the Enlarged Board of Appeal in decisions G 1/05 (OJ 2008, 271) and G 1/06 (OJ 2008, 307) – cannot be invoked when the scopes of protection conferred by the respective subject-matters **overlap only partially** with each other as there is no manifest objective reason to deny the legitimate interest of the applicant in obtaining a protection different from – although partially overlapping with – that of the parent patent already granted. Accordingly, the board concluded that the mere fact that the scope of protection notionally conferred by the claim in suit would partially overlap with that of the granted parent patent did not prejudice the grant of a patent (see also T 587/98, OJ 2000, 497; T 877/06; T 1491/06; T 1780/12; T 2461/10; T 2563/11).

In T 2402/10 the respondent raised an objection of double patenting, since claim 1 had been amended during the opposition/appeal proceedings in such a manner that its scope fully **encompassed** the scope of the claims of the patent granted from the grand parent application. The board recalled the well-established case law that a principle of prohibition of double patenting existed on the basis that an applicant had no legitimate interest in proceedings leading to the grant of a second patent for the "same subject-matter" (G 1/05, OJ 2008, 271; G 1/06, OJ 2008, 307; see also T 1391/07, T 877/06, T 1708/06, T 469/03). In the case at issue, claim 1 contained technical features not required by any claim of the patent granted from the grant parent application. Since the patent granted from the parent application and the patent in suit claimed different subject-matter, the question of double patenting could not arise. The board noted that the respondent also referred to the headnote of T 307/03, according to which a double patenting objection could also be raised where subject-matter of the granted claim was encompassed by the subject-matter of the claim later put forward. The board, however, saw this as no reason to depart from the mandatory requirement of "same subject-matter" invoked in decisions G 1/05 and G 1/06 and in the established case law. See also T 1155/11.

In T 1766/13 the board held that, with respect to the case at issue, a product and a method for its manufacture were not "the same subject-matter" in the sense of G 1/05 and G 1/06. According to T 1765/13, the same was true for the use of a product and a method of fabricating it. For a further case where parent application and divisional application did not relate to the same subject-matter, see T 1708/06.

In T 1780/12 the board held that the category of a claim and its technical features constituted its subject-matter and determined the protection conferred (see G 2/88,

OJ 1990, 93). The claims in question were of different categories: **Swiss-type claims** were purpose-limited process claims (Use of X for the manufacture of a medicament for the treatment of Y) and **claims formulated in accordance with Art. 54(5) EPC** were purpose-limited product claims (X for use in the treatment of Y). As regards the technical features, the board concluded that both sets of claims defined the same compound and the same therapeutic use, but that the Swiss-type claims comprised in addition the feature of manufacturing a medicament whereas the claim in accordance with Art. 54(5) EPC did not. The claimed subject-matter was thus different. The board also considered that the scope of protection was noticeably different. It was generally accepted as a principle underlying the EPC that a claim to a particular physical activity (e.g. method, process, use) conferred less protection than a claim to the physical entity per se (see decision **G 2/88**). It followed that a purpose-limited process claim also conferred less protection than a purpose-limited product claim. (See also **T 879/12**, **T 13/14** and **T 15/14** agreeing with the conclusions in **T 1780/12**.)

In **T 2563/11**, the appellants had contended that the prohibition on double patenting did not apply because, despite their identically worded independent claims, the parent patent and the divisional application had **different descriptions** and so each conferred a different extent of protection under Art. 69 EPC. The board observed, however, that the important point for the purposes of the prohibition on double patenting was whether the "same subject-matter" was claimed. A claim's subject-matter was defined by its category and technical features (Art. 84 EPC and R. 43(1) EPC), so the description was irrelevant in establishing whether the same subject-matter was claimed, especially if the claims in question were anyway clear and understandable in themselves (see **T 197/10**). By contrast, while the claims were likewise the basis for determining the extent of protection conferred by a European patent, Art. 69(1) EPC provided that the description and drawings were to be used to interpret them for this purpose. This meant that the extent of protection conferred by the patent might be broader than the subject-matter claimed. In the case in hand, the board rejected the appellants' contention that, owing to the considerable differences between the descriptions, the subject-matter of claim 1 of the divisional application was broader than its equivalent in the parent application.

5.4. Double patenting objection in opposition

According to the board in **T 936/04**, "double patenting" is not a ground of opposition. It is, however, within the discretion of the departments of the EPO to raise the objection in opposition or opposition appeal proceedings against proposed amended claims, but this should be done **only in clear cases**. The purpose behind the principle of the prohibition of double patenting was to avoid unnecessary duplication of effort, and not to impose on the departments of the EPO an obligation to make a complex comparison between the case before them and the claims that may have been granted in some other proceedings. In the case at issue, at the time of the decision by the opposition division, a patent had not yet been granted on the divisional application. For this reason alone the opposition division was correct to disregard the objections of double patenting raised before it. At that stage it would only be a matter for the examining division, in the proceedings on the divisional application before it, to avoid double patenting by again allowing claims already granted in the parent patent.